



Theme 4: The Constitution of 1996: Basic Principles, Concepts and Doctrines





Recap

Transformative Constitutionalism: Criticism

- 1) Persistent Inequality and Slow Pace of Change
- 2) Is too Court Centric
- 3) Liberal Compromise
- 4) Fetishism of the law

Value based constitutionalism

- Value-based constitutionalism is a legal concept that emphasises that constitutions are **not just legal, procedural documents** but are rooted in **core ethical, moral, and social values**.
- It prioritises these underlying **principles to guide the interpretation of rights and laws**.
- Constitutional values are the foundational principles that **underpin** a democratic state's legal framework and guide its governance.

Value based constitutionalism

S1 Constitution of the Republic of South Africa, 1996

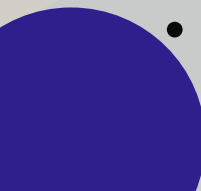
The Republic of South Africa is one, sovereign, democratic state founded on the following values:

- (a) **Human dignity, the achievement of equality and the advancement of human rights and freedoms.**
- (b) Non-racialism and non-sexism.
- (c) Supremacy of the constitution and the rule of law.
- (d) Universal adult suffrage, a national common voters' roll, regular elections and a multi-party system of democratic government, to ensure accountability, responsiveness and openness

Value based constitutionalism



Some Core Values and Application

- **Human Dignity:** Often positioned as the core value, underpinning the right to self-worth.
 - **Equality:** Demands substantive equality - addressing structural barriers and historic disadvantage - rather than just formal, equal treatment.
 - **Freedom:** Includes liberty of thought, expression, and action.
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Value based constitutionalism

- The values of human dignity, equality and freedom (and others) permeate the legal system
- What does this mean in practice?
 - Courts do not only ask “ what does the law say”
 - They also ask “what outcome will best reflect the constitutional values
 - Once again represents a break from the injustices of the past
 - The Constitution aims to build a just, inclusive, and democratic society
(refer back to discussion on Transformative Constitutionalism)

Value based constitutionalism

- Value-based constitutionalism, therefore, **contrasts with strict legal positivism**
- Constitutional interpretation in South Africa is therefore seen to be more moral, purposive, and transformative.

Value based constitutionalism

Interpretation

- These values are used **in the interpretation of the Bill of Rights**
 - **S39(1):** when interpreting the rights within the Bill of Rights... a court...must promote the values that underlie an open and democratic society based on human dignity, equality and freedom.
- Developing common law or customary law
 - **S39(2):** When developing the common law or customary law, every court... must promote the spirit, purport and objects of the Bill of Rights

Value based constitutionalism

- When interpreting legislation
 - **S39(2)** when interpreting legislation, every court....must promote spirit, purport and objects of the Bill of Rights
- **Daniels v Campbell 2004 (5) SA 331 (CC):**
 - Case looked at where the term “spouse” as used in the Intestate Succession Act and Maintenance of Surviving Spouses Act includes a surviving spouse to a Muslim marriage
 - **Justice Sachs** [para12]: “In the present matter the constitutional **values of equality, tolerance and respect for diversity point** strongly in favour of giving the word ‘spouse’ [in Intestate Succession Act ...] a broad and inclusive construction, the more so when it corresponds with the ordinary meaning of the word.”

Value based constitutionalism

Foundational Case: **S v Makwanyane 1995 (3) SA 391 (CC)**

- **Facts:**

- Makwanyane and Mchunu were convicted in the Witwatersrand Local Division on four counts of murder and **sentenced to death** under section 277(1)(a) of the Criminal Procedure Act 51 of 1977.
- Their appeal raised a constitutional challenge under **the Interim Constitution** of 1993, arguing that the death penalty violated the rights to life (section 9), **human dignity (section 10)**, and protection against cruel, inhuman, or degrading punishment (section 11(2))
- The case was referred to the newly created Constitutional Court, marking the first constitutional review of legislation in post-apartheid South Africa.

Value based constitutionalism

Foundational Case: S v Makwayane 1995 (3) SA 391 (CC)

- The appellants contended that the death penalty was incompatible with the Constitution's **foundational values of human rights** .
- The State argued that **deterrence, retribution, and public opinion** justified retaining the death penalty.
- The Court considered whether such justifications **could limit constitutional rights under the limitations clause** and whether public opinion could influence constitutional interpretation

Value based constitutionalism

The limitations Clause

- Rights are not absolute – they can in certain circumstances, be limited
- S36 contains a limitation clause – **that ALLOWS for the constitutionally valid limitation of rights in certain circumstances**
- Limitation is determined by a two stage enquiry
 - First court must establish a right has been infringed upon (limited)
 - Second the court must determine whether it is justifiable

Value based constitutionalism

The limitations Clause

S36 Constitution, 1996 (S33 (1) IC)

- S36: The rights in the Bill of Rights **may be limited** only in terms of the law of general application, to the extent that the limitation is reasonable and justifiable **in an open and democratic society based on human dignity, equality, and freedom**
- Factors to guide whether the limitation is reasonable and justifiable
 - Nature of the right
 - Importance and relationship between the purpose of limitation and the limitation
 - There are no less restrictive means to achieve the purpose

Value based constitutionalism

The limitations Clause

Re: S v Walters [para 26-27] : This is essentially a two-stage exercise. First, there is the threshold enquiry aimed at determining whether or not the enactment in question constitutes a limitation on one or other guaranteed right. This entails examining (a) the content and scope of the relevant protected right(s) and (b) the meaning and effect of the impugned enactment to see whether there is any limitation of (a) by (b). Subsections (1) and (2) of section 39 of the Constitution provide guidance on the interpretation of both the rights and the enactment, essentially requiring that they be interpreted **to promote the value system of an open and democratic society based on human dignity, equality and freedom**. If upon such analysis no limitation is found, that is the end of the matter. The constitutional challenge is dismissed there and then.

If there is indeed a limitation, however, the second stage ensues. This is ordinarily called the limitations exercise. In essence this requires a weighing-up of the nature and importance of the right(s) that are limited together with the extent of the limitation as against the importance and purpose of the limiting enactment.

Value based constitutionalism

The limitations Clause

(Stage 2) the reasonable and justifiable enquiry

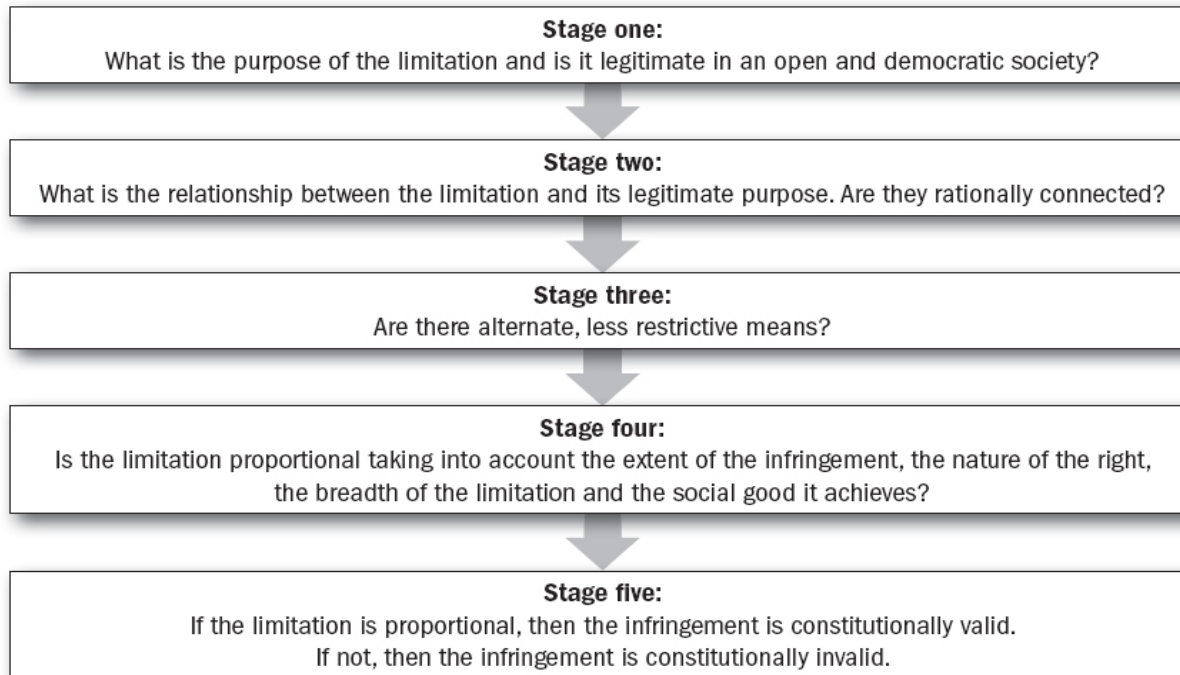


Figure 11.1 The steps in the justification enquiry

Value based constitutionalism

S v Makwanyane

- The court found that the death penalty “Places persons beyond the pale of humanity” and “uses a person as a tool for crime control”
- The death penalty violates the rights as found in the Bill of Rights (first leg of test)
- Was this limitation justifiable in terms of s36 (Second Leg of test)?
 - Is the purpose of the limitation acceptable in an open and democratic society based on values of human dignity, equality and freedom?

Value based constitutionalism

S v Makwanyane

- Is there a justifiable limitation based on the stated purpose?
 - Retribution
 - Prevention
 - Deterrence
- Constitutional Valid purpose of limitation?
- Rational connection between purpose and limitation?
- Less invasive means to achieve the purpose ?
- Proportionality – weighing up of the factors

Value based constitutionalism

S v Makwanyane

- The crux of it is that the court looked at the constitutional **value of human dignity** to determine that there **was no justifiable reason to limit** the Right to Life as found in the Bill of Rights through the use of the death penalty

Value based constitutionalism

Balancing competing rights using values

- Courts balance competing rights by asking which outcome best reflects constitutional values.
- ***Port Elizabeth Municipality v Various Occupiers 2005 (1) SA 217 (CC)***
 - Competing rights – right to private property and right to housing
 - Justice Sachs emphasised that fairness required considering both the owners' rights and the occupiers' human dignity, especially in the context of South Africa's history of forced removals.

Value-based constitutionalism

Values driving social transformation

- As discussed under Transformative Constitutionalism, one of the goals of the Constitution, 1996 is to change and transform society, not just resolve disputes.
- Minister of Home Affairs v Fourie 2006 (1) SA 524 (CC)
 - Right to Equality and Same-sex marriage
- Justice Sachs Denying same-sex couples access to marriage contravened rights and values of equality and human dignity. Excluding same-sex couples from marriage rendered them “outsiders” to society’s central institution of love and commitment.
- Religious objections were rejected on the ground that South Africa’s democracy requires the coexistence of sacred and secular spheres
- Framed marriage equality as integral to post-apartheid **constitutional values of dignity, equality, and freedom.**

Value-based constitutionalism

1. Normative

- The Constitution is based on **moral values**, not just legal rules

2. Interpretive

- Values guide how courts **understand and apply rights**

3. Transformative

- The Constitution aims to **change society and address injustice**

4. Contextual

- Must respond to and reflect South Africa's social and historical context

5. Counter-majoritarian

- Courts can uphold values even against **public opinion**

Class task:

Scenario:

- A group of 20 people has been living on unused municipal land for 3 years.
- The municipality now wants to evict them to allow for a private development project that will bring jobs and infrastructure.
- The residents argue that eviction will leave them homeless.

Task 1 in small groups

- Identify relevant constitutional values
- Decide the outcome
 - Should the eviction be allowed?
 - Discuss which values should carry more weight
 - How did your chosen values influence your decision